



Re: October 2025 Disclosure – Complete Explanation, Missing Email Clarification, and Sincere Apology

2 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: Marco van der Walt <marco@schroterlaw.co.za>
Cc: info@whistleblowerhouse.org, support@whistleblowerhouse.org
Bcc: info@ethichawks.co.za

Mon, 02 Mar 2026 at 13:06

Dear Mr van der Walt,

Thank you for your patience. I am writing to provide a complete and accurate response to your question regarding the October 2025 disclosure, together with a full explanation of why your email did not reach me and a sincere apology for the accusations I directed at you this morning.

1. EXPLANATION OF NON-RECEIPT OF YOUR EMAIL

Your question regarding the October 2025 disclosure was never received by me. It did not arrive in my inbox, my spam folder, or any other folder I have access to. This is consistent with the security concern I raised with you on 20 February 2026, in which I documented that a number of important emails had disappeared from my inbox entirely – including correspondence from the CCMA Provincial Senior Commissioner and various regulatory bodies.

I want to be transparent that I now understand this situation more clearly. Your confirmation that documents were only viewed online and not downloaded from my drive, combined with my own review of my Gmail account activity, suggests the missing emails may be the result of a technical issue with my account rather than deliberate external interference. Whatever the cause, the practical consequence was that your question sat unanswered for days while I believed our engagement had stalled. I did not know the question had been asked. That context is important for understanding the breakdown in our communication and I regret that it created the impression that I was ignoring your inquiry.

2. COMPLETE RESPONSE TO YOUR QUESTION REGARDING THE OCTOBER 2025 DISCLOSURE

The October 2025 disclosure was not a single isolated incident. It arose from my investigation of a formal complaint lodged by a GEMS member on behalf of his 75-year-old dependent mother, GEMS member 000655789 Dependent 02. The member's daughter complained that her mother, who collected her chronic medication reliably every month from her pharmacy, had received an automated letter from Medscheme suggesting she was non-adherent to her medication regime.

Upon investigating the complaint, I identified that the root cause was not member non-adherence but a systemic integration failure between two internal platforms – Gexus and DMS. The precise sequence I documented was as follows.

The member had collected her cholesterol medication under the acute benefit from November 2017 until December 2024. From January 2025 onwards, her medication was claimed under the chronic benefit.

Although Gexus reflected a chronic claim for cholesterol medication from April 2023 onwards, DMS did not receive or recognise this benefit change. DMS therefore continued tracking the member's adherence based on acute claims only – claims which had ceased because the medication had moved to the

chronic benefit. This caused DMS to incorrectly flag a fully compliant member as non-adherent and to automatically generate correspondence on 19 May 2025 and again on 19 October 2025, both sent despite the member collecting her medication correctly every month.

My root cause analysis confirmed that this was a systemic Gexus-to-DMS integration gap — not an error confined to this one member. Any GEMS member who transitioned from acute to chronic benefit for a maintenance medication would be at risk of the same incorrect flagging. The disclosure therefore had implications beyond the single complaint that brought it to my attention.

I documented my findings in writing and recommended that the team review the system integration gap and consult on the best way forward to prevent similar errors affecting other members. I declined to contact the member to discuss non-adherence because doing so would have been clinically incorrect — she was adherent — and potentially distressing to a 75-year-old woman who had done nothing wrong.

My Team Leader disagreed with my clinical assessment and directed me to proceed with the member contact as originally instructed. I maintained my position that contacting the member on incorrect grounds was not clinically appropriate. I was subsequently excluded from the final resolution of the complaint. This interaction was later framed as insubordination and poor communication, which became part of the pattern of occupational detriment I have documented in my legal proceedings.

To answer your question directly — the situation was not fully rectified following my disclosure. The recommended actions in the investigation outcome included reviewing and updating communication between the Gexus and DMS systems, but no confirmation of implementation was ever provided to me. The integration gap existed at the time of my disclosure and to my knowledge was never formally closed before my resignation in December 2025. I hold the complete email chain and root cause analysis documentation as evidence supporting this disclosure.

3. CONCLUSION

This disclosure is one of several documented protected disclosures I made between May and December 2025.

What makes it particularly significant is that it was made in good faith, was supported by documentary evidence, was independently confirmed by the investigation outcome, and was nonetheless used as the basis for characterising my professional conduct negatively. That sequence — disclosure, exclusion, framing as insubordination — is the pattern I am relying upon in my PDA retaliation claim.

I hold complete documentation for this matter including the original complaint, my root cause analysis, my Team Leader's responses, the investigation outcome confirming the system integration failure, and my final correspondence acknowledging the communication breakdown while preserving my clinical position. I am prepared to make this documentation available to you in full for purposes of your evaluation.

I remain filing at the Labour Court on-line Thursday 5 March 2026. The information you provided regarding the court online system has materially assisted my preparation for that filing and I am genuinely grateful for it. I remain open to a re-evaluation of my matter once the immediate filing deadline has been met.

4. SINCERE APOLOGY

Mr van der Walt, I owe you a direct and sincere apology.

This morning I sent you an email terminating our engagement and accusing you of unprofessional conduct and a failure to address a security breach. I now understand that your question about the October 2025 disclosure was sent and never reached me due to circumstances outside your control. You were not silent. You were waiting for an answer that I did not know I needed to give.

I also understand that your response on 26 February 2026, while it did not address the specific substance of my security concern, was not the deliberate dismissal I characterised it as. You acknowledged receipt in a context where you were still evaluating a very large volume of material. I responded to that acknowledgement with accusations of unprofessionalism that were unfair given what I now know.

I am sincerely sorry for the accusations. You did not deserve them. You have throughout this engagement responded with patience and you have provided me with genuinely useful information including this morning when it mattered most. I regret that my response to stress and the pressure of an imminent filing deadline caused me to direct frustration at you that was not warranted by your actual conduct.

I hope this apology is accepted in the spirit in which it is genuinely offered.

Yours faithfully,
Wilbur

Marco van der Walt <marco@schroterlaw.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>
Cc: info@whistleblowerhouse.org, support@whistleblowerhouse.org

Tue, 03 Mar 2026 at 14:26

Dear Wilbur,

1. Thank you for the below email. I confirm that I did not appreciate the contents of the email of yesterday morning, nor the tone thereof.
2. I considered your matter, and must advise that I am not persuaded that you qualify for whistleblowing protection, for *inter alia* the following reasons:

2.1. The matter in relation to your unpaid leave, was correctly handled by the employer. Kindly note that in terms of the BCEA and common law, the employee's consent is not required for deducting unpaid sick leave from a monthly salary (where all paid sick leave was depleted), irrespective of whether such is higher than 25% of the monthly salary or not. This is not necessarily a deduction, but a "no-work no-pay" principle. This would not qualify as a protected disclosure.

2.2. The matter in relation to the alleged misgendering and gender identity discrimination, was addressed via a grievance procedure and was deemed to be finalized, whether you agree with the outcome or not. The necessary avenues at the

CCMA were available at the time to bring an unfair labour practice dispute (i.e. victimization arising out discrimination). The remedies you seek in this respect lies within the employment equity act, as you have correctly invoked at the CCMA, resulting in the referral to the Labour Court.

2.3. The matter in relation to the GEXUS system and the 75-year-old client, appears, on what you have provided, to be a single isolated incident of a system glitch. On the information provided, the incident appears to reflect a system error rather than conduct that would ordinarily constitute an impropriety, other breach, or criminal conduct, of any sort.

2.4. Prior to your resignation in December 2025, there were attempts on email from the employer to resolve your workplace disputes further possibly, however, you then resigned before such could be taken further.

2.5. Also, you have submitted various complaints to outside entities only *after* the internal procedures did not yield the results you might have intended. This speaks to the aspect of a good faith disclosure, and a case may be made out that this was done in bad faith and in retaliation.

3. The test for constructive dismissal is a strict one, wherein it must be alleged and proved that as a result of the employer's conduct, the situation became so objectively unbearable for you that you have no other option but to resign. A key aspect in proving constructive dismissal is whether all internal dispute and grievance remedies were explored, applied, and exhausted, leaving you no option but to resign due to the intolerable environment.
4. Unfortunately, I am of the view that you would not meet the requisite threshold to succeed in proving an automatically unfair constructive dismissal by reason of having made a protected disclosure.
5. You are welcome to obtain a second opinion on the merits of the matter.

6. I wish you all the best with the matter and your future endeavours.

Yours faithfully,



MARCO VAN DER WALT

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